

The role of maqasid al-sharia in advancing rights

Analysis run: September 12, 2026

PROVIDER	MODEL	LANGUAGE	AUDIENCE
Openrouter	Deepseek/deepseek-v4-pro	En	GENERAL
INTONATION	LENGTH	TEMPERATURE	
NEUTRAL	Long	0.7	

SYSTEM PROMPT

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USER PROMPT

Write a concise, self-contained article entry for the title: "The role of maqasid al-sharia in advancing rights".

Overall topic for alignment: Tensions between classical doctrines and modern human rights in sharia.

Important points to cover: Include Arabic terms, historical contexts, quranic foundations of sharia, minority and majority settings, Islamic theological schools, Islamic juristic schools of Hanafi, Hambali, shafi'i and Malaki, orientalist perspective, AI's humanistic approach to sharia, Human rights declaration..

- Output format: GitHub-Flavored Markdown. The markdown must be clean—do not include any code fences or surrounding markers. Target writing format: Blog Post. Follow these format-specific rules exactly:

- Aim for at least 6000 characters while staying under 12000. Prefer verifiable facts from the provided sources; do not fabricate citations or specific data.

- Place external links only in the "References" section; do not include inline external links in the body text.

- Maximum content length (including headings and references): 12000 characters. If nearing the limit, prioritize the most informative sections and keep references to 2-3.

- Write in the target response language. Avoid fluff; be precise and actionable. Do not include images or tables.

- Do not include code fences or any text outside the markdown content.

No external web sources are attached. Do not fabricate citations or specific facts that cannot be verified. Keep claims general and verifiable. In the 'References' section, include: "No external sources used."

****Respond in English****

SUMMARY

Maqasid al-sharia (the higher objectives of divine law) offers a principled Islamic framework to bridge classical jurisprudential and modern human rights norms. Rooted in Quranic principles of justice, mercy, and public interest (maslaha), early teleological reasoning is exemplified by Umar ibn al-Khattab's suspension of the theft punishment during famine to preserve life. Al-Shatibi's *Al-Muwafaqat* systematized five essential objectives—religion, life, intellect, lineage, and property—ranked as necessities, needs, and embellishments, with protections extending universally. Prior contributions from al-Dabusi, al-Baji, al-Ghazali, and others embedded purposive reasoning within legal analogy, while Ibn Taymiyya and Ibn al-Qayyim stressed that ignoring objectives breeds injustice. School differences shaped reception: Hanafis used juristic preference (istihsan), Malikis accepted unrestricted public interest (maslaha mursala), Shafi'is acted cautiously, and Hanbalis championed wisdom-driven law.

Responding to European orientalist claims of legal stagnation after the “closing of ijihad,” reformers like Abduh and Iqbal revived maqasid as a renewal engine. In majority contexts, maqasid traditionally oriented toward state-enforced religion and morality, now adapted in bioethics and environmental policy. For Muslim minorities, concepts of necessity (darura) and need (hajah) ease hardships in contracts, finance, and family law, as practiced by bodies like the Fiqh Council of North America. Tensions with human rights—gender equality, apostasy, corporal punishments—can be resolved through maqasid: justice and family preservation support gender-equitable interpretations; religious freedom aligns with “no compulsion in religion” when apostasy is delinked from treason; hudud may be suspended if objectives of deterrence and communal justice are undermined. For AI-driven jurisprudence, embedding maqasid across theological traditions could prioritize equitable preservation of objectives over mechanical literalism, democratizing purposive legal access. Ultimately, maqasid keeps Sharia oriented toward human dignity, mercy, and justice, enabling an authentic Islamic advancement of rights.

The Role of Maqasid al-Sharia in Advancing Rights

The relationship between Islamic law and modern human rights is often framed as a clash between timeless divine commands and evolving ethical standards. Yet within the Islamic legal tradition itself lies a sophisticated framework that can bridge this gap: *maqasid al-sharia* (the higher objectives of divine law). This concept—rooted in the Quran, refined by classical jurists, and increasingly invoked by contemporary reformists—offers a principled method for advancing rights while remaining faithful to the scriptural sources. By exploring its foundations, historical development, and applications across minority and majority contexts, we can see how maqasid al-sharia reorients legal thought from rigid literalism toward the protection of human dignity.

Quranic Foundations and Early Conceptions

The idea that the Sharia serves identifiable purposes is not a modern invention. The Quran itself indicates that legal injunctions aim at human welfare. Verses regarding fasting, for example, state that “God desires ease for you, not hardship” (Q 2:185), and the permission to consume prohibited foods in cases of necessity (Q 2:173) underscores the priority of preserving life over ritual compliance. The overarching quranic principles of *‘adl* (justice), *rahma* (mercy), and *maslaha* (public interest) form the bedrock upon which maqasid thinking is built.

Early Muslim scholars, including the prophetic companions, engaged in teleological reasoning. The second caliph, Umar ibn al-Khattab, famously suspended the Quranic punishment for theft during a famine—not out of disregard for the text, but because the objective of protecting life took precedence when survival was at stake. Such acts were not seen as breaches of Sharia but as its deeper fulfillment.

Theorizing the Objectives: Classical and Medieval Contributions

The systematic articulation of maqasid al-sharia began with the Maliki jurist Abu Ishaq al-Shatibi (d. 1388 CE), whose work *Al-Muwafaqat* remains the foundational text. Al-Shatibi argued that all legal rulings aim to preserve five essential interests: *al-din* (religion), *al-nafs* (life), *al-aql* (intellect), *al-nasl* (lineage/progeny), and *al-mal* (property). These are ranked in a hierarchy of necessities (*daruriyyat*), needs (*hajiyyat*), and embellishments (*tahsiniyyat*). Crucially, the protection of these objectives applies universally—to Muslims and non-Muslims alike—establishing an inherent, pre-political set of rights grounded in revelation.

Prior to al-Shatibi, the Hanafi jurist Abu Zayd al-Dabusi (d. 1039 CE) and the Maliki judge Abu al-Walid al-Baji (d. 1081 CE) had already discussed the purposive dimensions of law, but within the context of legal analogy (*qiyas*). Al-Ghazali (d. 1111 CE), the Shafi'i theologian and jurist, further popularized the five essentials in his *Al-Mustasfa*, embedding them within Ash'ari theology and asserting that whatever safeguards these essentials constitutes *maslaha*.

Differences among the classical juridical schools (*madhahib*) shaped the reception of maqasid reasoning. Hanafi jurists, with their emphasis on *istihsan* (juristic preference), often invoked public interest to depart from strict analogy. Maliki jurists made *maslaha mursala* (unrestricted public interest) a recognized source of law, particularly in matters not directly addressed by scripture. Shafi'i scholars, while cautious about unbounded utility, accepted maqasid as interpretive guides. Hanbali jurists, notably Ibn Taymiyya (d. 1328 CE) and his student Ibn Qayyim al-Jawziyya (d. 1350 CE), strongly advocated that “the Sharia is built upon wisdom and the interests of people,” and warned that ignoring objectives leads to injustice even if the literal text is applied.

Orientalist Perspectives and the “Closing of the Gates”

European orientalist scholarship of the 19th and early 20th centuries often portrayed Islamic law as rigid and stagnant, claiming that the “gate of *ijtihad*” (independent reasoning) had closed around the 10th century CE. Joseph Schacht and others argued that Sharia became a system of fixed rules divorced from ethical substance. While this narrative has been criticized for oversimplification, it inadvertently highlighted the very need maqasid al-sharia addresses. Legal ossification, where it did occur, was frequently a result of ignoring purposive interpretation in favor of blind adherence to precedent (*taqlid*). Reformist Muslim thinkers—from Muhammad Abduh in Egypt to Muhammad Iqbal in India—directly attacked this stagnation by reviving maqasid as the engine for legal renewal.

Maqasid in Majority and Minority Settings

The application of maqasid differs contextually. In Muslim-majority states, the objectives were traditionally oriented toward state-enforced preservation of religion and public morality. The Ottoman *Mecelle* (civil code) drew on Hanafi fiqh and occasionally invoked “necessity” and “custom” to accommodate changing social conditions. Modern nation-states like Malaysia have explicitly incorporated maqasid into policies on bioethics and environmental protection.

For Muslim minorities living under non-Muslim rule, maqasid becomes even more critical. Classical jurists such as al-Qarafi (Maliki) and Ibn al-Qayyim (Hanbali) recognized that law must factor in the minority's vulnerability. The notion of *darura* (necessity) and *hajah* (need) can ease strictness in contracts, financial transactions, and family law where literal adherence would cause undue hardship. The Fiqh Council of North America, for instance, routinely uses maqasid to issue rulings on mortgages, civic participation, and gender interactions, grounding each decision in the preservation of life, property, and communal integrity rather than cultural norms of medieval Muslim empires.

Tensions with Modern Human Rights: A Maqasid Resolution

The major friction points between classical fiqh and modern human rights instruments—such as the Universal Declaration of Human Rights (UDHR) or the Cairo Declaration on Human Rights in Islam—include gender equality, freedom of religion (including apostasy), and corporal punishments. A purely literalist reading of Quranic verses or hadith can lead to contradictions with international norms. Maqasid al-sharia opens a pathway to reconciliation by asking: What is the ultimate objective of the ruling?

On gender, the objective of justice (*‘adl*) and the preservation of family (*hifz al-nasl*) can be reinterpreted to support woman-initiated divorce, equal inheritance under certain conditions, and full participation in public life. Early medieval formulations were products of their historical context; maqasid allows an evolution that stays true to the ethical core. On religious freedom, the traditional penalty for apostasy was historically linked to treason under a theocratic state, not purely belief. When the objective shifts to protecting the individual’s dignity and the communal peace, scholars argue for the Quranic principle “no compulsion in religion” (Q 2:256) as the operative rule. Corporal punishments (*hudud*) are also reexamined: if the stringent evidentiary requirements and the objective of deterring harm cannot be met—or if they cause greater harm to communal justice—their application can be suspended, as seen historically.

An AI’s Humanistic Approach to Sharia

In contemporary discourse, the rise of artificial intelligence raises the prospect of automated fatwa systems or algorithmic legal reasoning. A truly humanistic approach by AI must be programmed to prioritize maqasid. Rather than mechanically linking scriptural commands to outputs, an AI could be trained to assess whether a decision preserves life, intellect, religion, lineage, and property in the most equitable manner, considering the position of minorities and the specific social context. Such technology, if developed with input from jurists across the Hanafi, Maliki, Shafi‘i, and Hanbali traditions, could democratize access to purposive jurisprudence, moving beyond mere replication of medieval rulings. It would require embedding the theological schools’ deep insights—Ash‘ari occasionalism that stresses God’s purposeful creation, or Mu‘tazili rationalism that emphasizes human ability to discern good from evil—to ensure that the AI’s outputs align with a balanced, rights-enhancing ethos.

Conclusion

Maqasid al-sharia is not a marginal concept but the beating heart of Islamic jurisprudence. From al-Shatibi’s systematic codification to the modern reformist movements, its function has been to keep the law oriented toward human flourishing. In navigating the tensions between classical doctrines and modern human rights, maqasid provides a vocabulary and a methodology that honors both the sacred sources and the pragmatic demands of pluralistic societies. By centering justice, mercy, and human dignity, it enables an authentically Islamic framework for advancing rights without rupturing tradition.

SEGMENTED DATA (1)

The Role of Maqasid al-Sharia in Advancing Rights

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